



**WYOMING AIR NATIONAL GUARD
HEADQUARTERS 153D AIRLIFT WING
217 DELL RANGE BLVD, CHEYENNE, WYOMING 82009**

**MEMORANDUM OF AGREEMENT BETWEEN
THE 153d Airlift Wing (153 AW), Wyoming Air National Guard
AND
THE Cheyenne Police Department (CPD)
FOR**

This is a Memorandum of Agreement (MOA) between the 153 AW and the CPD. When referred to collectively, the 153 AW and the CPD are referred to as the "Parties".

1. **BACKGROUND:** 153 SFS has limited law enforcement authority and acts principally to protect military assets and personnel essential for National Defense. This MOA acknowledges that in some situations there may be no practical distinction between threats to the area and to Defense assets and provides the mechanism by which a certified law enforcement official of the CPD may request 153 SFS response to contingencies. The Governor of Wyoming or his lawful designee will determine the availability and extent of direct assistance to law enforcement that the 153 AW will provide. Additionally, this MOA addresses shared law enforcement responsibilities for situations arising on Wyoming Military Department property located at 217 Dell Range Boulevard, Cheyenne, Wyoming 82009.
2. **AUTHORITIES:** In accordance with DoD Instruction 2000.16 v1, Antiterrorism (AT) Program and Air Force Instruction (AFI) 10-245, Air Force AT Standards, and AFI 25-201, Intra-Service, Intra-Agency, and Inter-Agency Support Agreement Procedures, this Memorandum of Agreement (MOA) coordinates emergency services by and between the 153 AW, Wyoming Air National Guard and Cheyenne Police Department (CPD) in their efforts to supply the residents of the respective jurisdictions with protection from natural and manmade disasters, crime or acts of terrorism.
3. **PURPOSE:** The 153 AW and the CPD acknowledge that a situation could arise that may require armed support in cooperation with local law enforcement agencies.
4. **AGREEMENTS OF THE PARTIES:** Therefore, the 153 AW and the CPD agree to mutually practice crisis management which shall include measures to identify, acquire, and plan the use of resources needed to anticipate, prevent, and/or resolve a natural or manmade disaster(s), criminal acts or acts of terrorism.

4.1. 153d Security Forces Squadron (153 SFS) will —

4.1.1 Provide armed response to all suspicious activities on the Cheyenne Airport property located within the perimeter fence line (excluding buildings such as the terminal and hangers).

4.1.2. Share pertinent intelligence with CPD. 153 SFS will exchange intelligence and law enforcement sensitive information via email and/or Facsimile (FAX).

**Approved as to
form only**

MRO
Date: 6/22/21

4.1.2.1. 153 SFS will immediately notify CPD of suspicious incidents/vehicles and suspicious activity, including incident near the perimeter of the WYANG Base or adjacent areas, via direct landline to the Laramie County Combined Dispatch Center.

4.2. Cheyenne Police Department (CPD) will —

4.2.1. Provide armed response for the investigation of crimes committed on the WYANG Base and remote locations. CPD will, as appropriate, arrest individuals detained/apprehended by the 153d Security Forces Squadron (153 SFS) on the 153 AW.

4.2.2. Provide armed response to the 153 AW for terrorist incident, active shooter, Explosive Detection/Disposal support, Explosive/Narcotics Detector Dog support, CPD Special Weapons and Tactics (SWAT) and or Hostage Negotiation Team (HNT) support as deemed appropriated by responding CPD personnel.

4.2.3. Participate in 153 AW Threat Working Group meetings as needed.

4.2.4. Share pertinent intelligence with 153 SFS. CPD will exchange intelligence and law enforcement sensitive information via email and/or Facsimile (FAX).

4.2.4.1. CPD will immediately notify 153 SFS of suspicious incidents/vehicles and suspicious activity via direct landline to the 153 AW BDOC at 772-6309.

4.2.5. In situations where CPD wishes to request use of 153 SFS assets, they may make the request through the Adjutant General Joint Operations Center (JOC) at 307-772-5112.

5. PERSONNEL: Each Party is responsible for all costs of its personnel, including pay and benefits, support, and travel. Each Party is responsible for supervision and management of its personnel.

6. GENERAL PROVISIONS:

6.1. POINTS OF CONTACT: The following points of contact will be used by the Parties to communicate in the implementation of this MOA. Each Party may change its point of contact upon reasonable notice to the other Party.

6.1.1. For the 153 AW—

6.1.1.1 Primary: Capt Terrance L. Bell
Commander, 153d Security Forces Squadron
217 Dell Range Blvd, Wyoming Air National Guard, Cheyenne, WY
Tel: (307) 772-6215
Email: terrance.bell.1@us.af.mil

6.1.1.2. Alternate: CMSgt Rhodes, Douglas
Security Forces Manager
Tel: (307) 772-6308
Email: douglas.rhodes.1@us.af.mil

6.1.1.3. 24 hour Base Defense Operations Center
Tel: (307) 772-6309

6.1.2. For the CPD—

6.1.2.1. Primary: Mark Francisco
Chief of Police
415 W. 18th Street Cheyenne, WY 82001
Tel: (307) 637-6512
Email: mfrancisco@cheyennepd.org

6.1.2.2. Alternate: Jared Keslar
Captain
Tel: (307) 637-6543
Email: jkeslar@cheyennepd.org

6.1.1.3. 24 hour Dispatch Contact
(307) 637-6524

6.2. CORRESPONDENCE: All correspondence to be sent and notices to be given pursuant to this MOA will be addressed to the following:

6.2.1. 153 SFS
217 Dell Range Blvd.
Cheyenne, WY 82009

6.2.2. Cheyenne Police Department
415 W. 18th St.
Cheyenne, WY 82001

6.3. FUNDS AND MANPOWER: This MOA does not document nor provide for the exchange of funds or manpower between the Parties nor does it make any commitment of funds or resources.

6.4. MODIFICATION OF MOA: This MOA may only be modified by the written agreement of the Parties, duly signed by their authorized representatives. This MOA will be reviewed annually on or around the anniversary of its effective date, and triennially in its entirety.

6.5. DISPUTES: Any disputes relating to the interpretation and/or performance of this agreement will be determined according to this paragraph. If there is a dispute in interpretation and/or performance under this agreement arising from and primarily concerning the WYANG premises or operations or an incident which constitutes an imminent threat to the WYANG premises, equipment or operations, the WYANG Commander shall have final authority with the advice and assistance of the relevant CPD personnel. The CPD shall have final authority as to disputes concerning all other airport matters and locations subject to applicable state or federal law and regulation and any applicable Incident Command System. Disputes are subject to applicable law, Executive Order, Directive or Instruction, and may be mutually resolved through consultation between the parties in accordance with DoDI 4000.19 and AFI 25-201, para 3.6.

6.6. TERMINATION OF UNDERSTANDING: This MOA may be terminated in writing at will by either Party.

6.7. TRANSFERABILITY: This MOA is not transferable except with the written consent of the Parties.

6.8. ENTIRE UNDERSTANDING: It is expressly understood and agreed that this MOA embodies the entire understanding between the Parties regarding the MOA's subject matter.

6.9. EFFECTIVE DATE: This MOA takes effect beginning on the day after the last Party signs.

6.10. EXPIRATION DATE: This MOA expires nine years from final signature.

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6.11. CANCELLATION OF PREVIOUS MOA: This MOA cancels and supersedes the previously signed MOU between the same parties with the subject effective date of 15 May 2013.

APPROVED: [APPROVAL AUTHORITY SIGNATURES WILL NEVER BE ALONE ON A BLANK PAGE]

Legal Review:

KAREN E. HINKLE, Major, ANG
Staff Judge Advocate, 153d Airlift Wing

(Date)

FOR THE 153 Security Forces Squadron

For the Cheyenne Police Department:

TERRANCE L. BELL, Capt, ANG
COMMANDER, 153d Security Forces

MARK FRANCISCO, Chief of Police
Cheyenne Police Department

(Date)

(Date)

For the City of Cheyenne:

(SEAL)

Attest:

KRISTINA F. JONES, City Clerk

PATRICK COLLINS, Mayor

(Date)

Signed copies to: COP Francisco, CPD

153 SFS/CC

153 LRS/LGRDX

IN TURN